

Correspondence between CMC and Thameside ref Communal Land Transfer

16 September 2014

Dear Dave

Thanks for your email and the attached proposals from Mr Willis. Both of these are certainly very helpful and move us close to a settlement that I think the CMC Directors and the owners could agree.

Unfortunately we have not yet been able to consult with the owners. Not having heard from you we had already had to notify owners on Friday morning of postponement of the meeting provisionally set for Sunday night. I then received your email at 18.54 Friday evening. I was however able to confer with the CMC Directors on Sunday and their comments are as follows. If you can agree this, we'll immediately recommend it to the owners for decision as soon as we can reschedule their meeting.

Your willingness to cover legal costs for owners where they arise, provided they are reasonable and you can agree quotes first, will I'm sure be a basis that will satisfy the owners. The CMC Directors will recommend this. Since we all know all the details of the land, what's being transferred, etc, it seems to us it should all be straightforward and simply needs the administration completing. We just need you to agree to sort out any lender-related issues if any should arise.

Taking Mr Willis's points :

1 Subject to her seeing this, I suspect Mrs Davies would accept the proposed action. A straightforward TP1 transfer of the cupboard can presumably be coupled with transfer of the small bit of blue land in her garden. I think she will want to consider whether to ask her lender if they need any solicitor involvement and will look to you to cover her costs if they do, but we note Mr Willis' view that she will not. Mr Willis refers to "Jeffers" here and in para 2, but he actually means the settlement of the Bickers' title in the mediation process. Provided we sort out the archway communal access issue (see below) there are no other access issues relating to this cupboard.

2 Subject to the respective owners seeing this, I suspect they will accept the proposed action. Again it would be for the individual owners to check with their lenders that they do not need solicitor involvement and for Thameside to cover any reasonable costs arising based on quotes in the event they do. We will ask the owners to provide us with their full details and pass these to you. Just for clarity, the mediation discussion did not consider or comment on whether the Bickers settlement would need any solicitor involvement, it simply agreed that Thameside would sort the problem, so that's the consistency we are asking for in these cases.

3 We've carefully considered Mr Willis's amended proposal to sort this by granting access rights, but we don't find this acceptable. The original conveyances provided for transfer of the title in this land and therefore the communal access to the management company and that's what we wish to see achieved. We appreciate that the "flying freehold" aspect of this may possibly prove difficult in respect of the lender, but it can be clearly demonstrated to them that an administrative mistake was made and the reason for the land being transferred back to communal status is obvious. Happily Mr McCann himself is willing to agree the transfer provided he

incurs no costs and I know that he has plans and paperwork which describe the title precisely and can be used to demonstrate how the problem arose. I can ask him to provide this to Mr Willis as soon as we are proceeding.

4 I have spoken further with Mr Jeffers about the Northern Roadway and happily this should be simple to sort out based on Mr Willis's proposal. You'll be pleased to know that Mr and Mrs Jeffers are the joint owners of this land outright and there is no lender involved. They will want to consider whether they need any solicitor involvement when they receive Mr Willis's documentation, but they may not. They are willing to accept a straightforward TP1 transfer and re-registration of the roadway area to CMC and will then derive access rights to this in common with the other residents through the communal ownership. They will make their contribution to maintenance costs through their annual contribution to CMC in common with all other owners.

5 QEDG Land. Mr Willis's proposal is again helpful. Noting that we still reserve our position on this to see the detail of whatever insurance solution you can provide and may need you to find a Plan B, we can certainly assist Mr Willis by providing the plan documents we have relating to the QEDG and Thameside titles. I will email these to you both separately with an explanation of what I understand about the transfers. Obviously our concern is to achieve a position where there can be no successful legal challenge by QEDG to the owners continuing to access their property over this land, if QEDG were to try this any time after Thameside has transferred all the communal land.

If you can let me know the above points are agreed, we will try to arrange formal confirmation by the owners asap. We will seek agreement that the communal land transfer can proceed as soon as the Archway, QEDG and Northern Roadway aspects and other minor plan corrections are in place, leaving the individual blue land issues to be sorted separately but as speedily as possible.

Best wishes.

Jonathan

From: [Dave Harris](#)
Sent: Friday, September 12, 2014 6:54 PM
To: jdpope@btinternet.com
Subject: FW: Transfer of Communal Land at Liscombe.

Dear Johnathan ,

I thought I would share with you the thoughts of my solicitor on a Without Prejudice basis in light of your meeting .

You will see his suggestion is to get costs from the individual residents solicitors etc as necessary , when we have them we will be able to make a decision, but as long as they are reasonable I can't see us not agreeing to them .

We will pay for any plans that are necessary and Richard will obtain the quote for the insurance as soon as you give him the info re the original plan etc

If these principals are accepted by the residents then we will have a way forward and we can knock off each issue one by one ?

Hope you have a good meeting and look forward to your reply next week

Regards

Dave

From: Richard Willis [mailto:rwillis@geoffreyleaver.com]

Sent: 12 September 2014 09:22

To: Dave Harris

Subject: Transfer of Communal Land at Liscombe.

Dear Dave,

I note that The Courtyard Management Company has a meeting this weekend and so I am addressing the issues raised by Mr Pope in his letter dated September 2nd, 2014. You may want to pass this on if you agree with its content. (You and I have obviously e mailed on this separately).

Looking at the issues, taking the easy ones first.

1. In respect of the cupboard, I just need a plan. I will then prepare a TP1 form transferring this small piece to Mrs Davies. There will be no rights granted or reserved. Just a transfer of a cupboard. The fee for the land registry will be £40. I don't need to trouble her existing lender. She will have a separate title number for this cupboard which could probably be amalgamated when eventually sold with the main plot. She doesn't need a lawyer for this. Mr Jeffers didn't need a lawyer and nor did the mediators suggest that he would. Are any access rights required please??

2. The same principle applies to The Blue Land. Just need a plan for each one and the full names and addresses of the plot owners. £40 for each registration fee. The same principles apply as set out for Mrs Davies. This fits with what the mediator set out as an action plan for Jeffers.

3. Archway. I have had a re think on this. I had not considered the point about flying freehold which was mentioned at our last meeting. Rather than trouble the lender too much, why don't we leave matters as they are? Simply ask Mr McAnn to grant access rights under the arch in return for maintenance obligations on the small area of land. These will be undertaken by the management company. This is so much simpler. Mr McAnn's lawyer will only need to contact the lender and approve and register a deed of grant of access rights and it avoids all issues of flying freehold. I suggest you obtain a quote for doing this work. There will be a £40 land registry fee. In addition there will be a handling charge by the Building Society which you should obtain a quote on too. We can then firm up this aspect. Will still need a plan showing the area. Could Mr McAnn organise this please? No commitments can be given until the fees are known.

4.Northern Roadway. This will be a TP1 .Plan needed. Simple transfer of part (TP1),reserving access rights (any services??). As with the archway the Transferor will need to agree to pay a fair proportion of maintenance costs too in the future.£40 land registry fee. Same principles apply as for McAnn. Get a quote please for us to consider. Lawyer fees plus building society administration fee.The lawyer fee is likely to be similar to McAnn. No commitments can be given until the fees are known.

5.QEDG.Presumably no solicitor is required here? I will try to obtain an insurance quote.(As specified by Mr Pope).I would appreciate copy documents as promised from him as he has a good grasp on how this happened and the relevant documents for me to pass over to the insurers. Im happy to meet him to go through the case if it is necessary.I want to be as clear as possible to the insurers.The cost (unknown) is the cost of the policy.

Let me know if/when I can assist further.

Richard Willis
Partner

Geoffrey Leaver Solicitors LLP

2 September 2014

Dear Dave

Thanks for your email forwarding Mr Willis's proposals. I have been conferring with the CMC Directors and can now give our response. I'm currently in France until Friday and cannot conveniently speak by phone, so I'm setting out a summary by email. If you wish to speak I will be available in the UK again on 07799 764964 from Saturday.

Mr Willis's response and your comments are certainly a welcome and helpful step forward and we thank you for that. They leave some loose ends that need tying up before we will be able to obtain the agreement of the 14 residents to this course. We have provisionally arranged a decision meeting with them for the weekend of 13/14 September, so it would be most helpful to have your further response ahead of that if possible.

The Mediation agreement was designed to be a full and final settlement of all issues between the parties and central to that was transfer of a clean title to CMC. You'll recall that when we concluded the Mediation Agreement we were both aware that there were problems with the title of No 11, because we pointed out that Thameside had previously conveyed this title to Ian and Sharon Bickers but were still proposing on the plan to convey it as management land. We agreed that you would sort this re-registration out at your own expense for both parties prior to the transfer and you indeed kindly did so. Clearly had we known then of the list of other title problems, we would have required in the Mediation agreement that these were also resolved at

Thameside's expense prior to transfer, and I think you would have agreed to do so. We therefore believe it's both logical and consistent for CMC and the residents to ask you to do this now. I can say with certainty that this is essential to obtaining the residents' agreement to the proposed actions. Failing which we will probably have to ask for the Mediation to be reopened, which I'm sure we both wish to avoid.

There are actually three variations of problem. In the case of the archway land and the northern roadway we are dealing with land which should have been reserved for transfer as communal land but has been incorrectly conveyed to individual residents. In the case of the Darvill land we are dealing with land which Thameside thought it owned but it turns out it does not. In the cases of the blue land and the archway cupboard, we are dealing with land that should have been conveyed to the individual residents. We understood from your Mediation documents that it had been, but it's now clear it still remains part of Thameside's title.

All of these problems arise from the defects in the original conveyance documents and later the Mediation transfer plan provided by Thameside. While it's true to say that the buyers could have also interrogated these titles more carefully, their actions only compounded the problem, which was clearly caused by Thameside / Sumner & Tabor. Consequently we do not believe it is right or reasonable to expect any of the 14 residents to pay legal costs arising on their part to sort out Thameside's defective work and titles. Our legal advice is that some hopefully straightforward legal work is likely to be necessary in most cases including to satisfy lenders. The corrected titles will also need to be legally registered with the Land Registry. Mr Willis said at the meeting that he thinks the costs should be modest. We therefore request that legal costs which the residents will incur, including anything required by their respective lenders, should be reimbursed by Thameside. In addition to Mr Willis's agreement to undertake the administrative work, we are looking for a written agreement with each resident to cover their costs.

Regarding the proposed insurance policy, we have also taken advice from our solicitor on this. We are advised that these are indeed commonplace as a means of addressing defective titles, but that most such policies only provide cover for legal costs and not for any payment which the third party owner might require to resolve a problem. It will obviously depend on the wording of the policy and how confident we can be of its enforceability if the problem arises after transfer. We therefore need to reserve our position on this to see what you can propose in detail. But we will need to be certain that the insurance provider has been notified in writing of the precise circumstances of the Darvill ownership/failure to transfer and that the cover includes a sensible level of potential payment for anything that Darvill might demand, as we both know is likely. Mr Willis seemed to have some doubts about the applicability of this solution, as does our solicitor, and we would suggest there is a need for Thameside to propose a Plan B to provide guaranteed access to the car park as backup.

I can certainly provide copies of the plan documents we reviewed at our meeting and will do this when I return next week. Ditto we will obtain for you the details of owners, their lenders and account numbers etc. Please note that I understand John Jeffers will be unavailable abroad for six weeks from mid-September.

Finally the cupboard does need to be transferred to Mrs Davies as discussed. I think this is the same as the other blue land in that it is part of a title retained by Thameside that needs to be transferred to an individual owner. Since Mrs Davies also has blue land in her garden, this can presumably be done in combination.

Both parties clearly want to settle this as soon as possible. As to timing I think CMC and the residents would accept the following. The blue lands and the archway cupboard are all matters between Thameside and individual residents. Provided we have your assurance that these will be progressed to completion asap in each case and each resident's costs reimbursed, these lands could be removed from the communal land transfer plan and the transfer to CMC need not wait on all of those. The position with the archway, the northern road and the Darvill land is different as these all directly affect every resident and CMC's title. These will need to be fully resolved before the transfer.

We'll look forward to hearing from you and will then refer your considered position to the residents. We will assist with information etc as needed.

Jonathan

Jonathan Pope
Company Secretary - CMC

25 August 2014

Dear Jonathan

Following our meeting last week we have been discussing the best way forward

Richard has set out our proposals below

Can you consider these and check with all of the residents that they are happy with this approach including the co operation of the various parties so that the process is made as efficient as possible

As soon as we have there agreement I will instruct Richard to proceed and will cover his costs associated with the issues

We will also provide any plans etc that are needed to sort out the necessary transfers

Regards

Dave Harris
Director

Thameside Homes

Begin forwarded message:

From: "Richard Willis" <rwillis@geoffreyleaver.com>
Date: 25 August 2014 10:29:19 BST
To: "Dave Harris" <daveh@thamesideltd.co.uk>
Subject: Transfer of Communal Land at Liscombe.

Dear Dave,

I set out below a task list to deal with the anomalies in the transfer plan .Please would you send it on to Mr Pope. I suggest that the most expeditious way to deal with this is for Geoffrey Leaver to resolve the problems.That is not an admission of anything but a practical approach to getting things done quickly.

Mr Mc Cann

I suggest I receive written authority from Mr Mc Cann (and any co owner) to write to his lender. I will need his account number, confirmation of his registered title number and the name and address of the lender. I will write to the lender to request that they release the ground floor part of the access. My request will be that they transfer the ground floor to the Management Company. They will not be keen to transfer it back to the original seller just in case anything happens to that seller. However, my plan would be to try to collate all the documents so I can date and submit them all at the same time.

Could I have a plan please to submit to the mortgage company. The transfer will reserve a right of way through the arch for Mr McCann and his successors in title.

I cannot represent Mr McCann as well as Thameside. I will however write to him to summarise what I am doing/have done. It will be a simple TP1 transfer with a reservation for access . His lender may have their own requirements for dealing with this and may want to take independent advice.I will let you know when I get that far.

QEDG.

I need a decent land registry plan from you showing the area in question.Jonathan brought along the original Liscombe title plan and the transfer plan which explained this really clearly.I wasn't involved in these transactions so if Lonathan would copy me in with the documents that would be really useful so I can explain it to the insurers.I suggest we start with insurance.

Mr Jeffers

Same as for Mr McCann.Plan from you please.Their mortgage details,land registry information and authority to contact the lender.Transfer will be a TP1 reserving rights of access in the same way as McCann.

The Blue Land

Six (I think) transfers from Liscombe to the individual plot owners. My proposal is to prepare simple TP1 forms and transfer these plots to them individually as required. I will need a plan for each one please, marked clearly to show who it is being conveyed to. I will need authority from each of the plot owners (co owners) to transfer the land into their names and register it. It will be a simple transfer. The plots already have rights granted and reserved by means of the main transfer. I'm not replicating those for these pieces. They will also not be charged to the lender for each resident but nor are they at the moment. Again, I can not provide independent advice to the individuals but I hope it is sufficiently clear to all what we are doing. There may be some issues at registration regarding ID. The registry are very particular. I may need assistance from Mr Pope at this stage.

Mrs Davies

Advice on this one please. If we can identify this area on a plan I will transfer it to the management company. Everything that I have said about McCann would apply to this. I think this would be a simple transfer with no rights reserved. Question, is this one really necessary??

The transfers above will then need to be deleted from the overall plan so we don't try to transfer them twice. However you will need to make the marginal adjustments to the plan to reflect 6 and 7 in my e mail of 31 July. These don't require transfers, just amendment to plan.

Lets get this started. I look forward to hearing from you/Mr Pope.

Richard Willis

Partner

Geoffrey Leaver Solicitors LLP